

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT**

W.P. No.43583 of 2020

Zafar Iqbal

Versus

Assistant Commissioner Chunnian, District Kasur & others

J U D G M E N T

Date of hearing: 12.01.2022.
Petitioner by: M/s. Imran Muhammad Sarwar, Barrister
Ch. Muhammad Umer, Rana Muhammad
Ansar, Tauqeer Haider Bhatti and Kashif
Habib, Advocates.
Respondents by: Barrister Ameer Abbas Ali Khan, Assistant
Advocate General along with Mushtaq,
Supervisor, Office of Land Acquisition
Collector.

MUHAMMAD SAJID MEHMOOD SETHI, J.: Through instant petition, petitioner has called in question the act of respondents No.1 & 2 of demolishing the property of petitioner and sought direction for said respondents to conduct fresh demarcation of the property along with payment of liquidated damages / compensation.

2. Brief facts of the case are that Government of Punjab, Punjab Highway Department approved a plan for construction of *Chunian-Bypass Road, Connection Chunian Ella Abad Road with Chinian-Hujra Road* of village Chunain Hithar and notification under Section 4 of the Land Acquisition Act, 1894 (“**the Act of 1894**”) was published in the official Gazette on 29.12.1999, which included *Khasra* No.4220, wherein petitioner’s land was also situated. Notification under Section 6 was issued on 22.06.2005. Award for acquisition of total land measuring 99-Kanals & 11-Marlas was announced on 30.04.2014, wherein petitioner’s land measuring 14-Marlas in *Khasra* No.4220 was also included. Mutation in favour of

the government was sanctioned on 28.07.2020 and property in question was demolished in August, 2020. However, petitioner's claim is that actually petitioner's land measuring 04-Marlas was acquired and petitioner was still owner of remaining 10-Marlas land. Later on, respondents No.1 & 2 demolished the building constructed over aforesaid 14-Marlas land. Hence, instant petition.

3. It is contended by learned counsel for petitioner that there is an inordinate delay between issuance of notifications under Sections 4 & 6 of the Act of 1894 inasmuch as no justification has been provided for invoking emergency provisions and dispensing with the requirement of issuing notification under Section 5 of the Act of 1894. Adds that mandatory provisions of the Act of 1894 have been violated, hence, impugned acquisition proceedings are nullity in the eye of law. Adds that petitioner's total land measuring 14-Marlas has illegally been transferred in favour of Punjab Highway Department whereas only land measuring 04-Marlas was acquired and remaining land was still in ownership of petitioner. Further submits that petitioner was totally unaware about the land acquisition proceedings as he never received any notice in this regards. Argues that petitioner was regularly paying the property tax up till 2020, however, respondents illegally demolished petitioner's building without giving any prior written notice / intimation or conducting demarcation of the acquired land, hence, impugned action is unsustainable in the eye of law. Learned counsel has referred to Col.Bashir Hussain and 10 others v. Land Acquisition Collector, Lahore Improvement Trust, Lahore and 2 others (PLD 1970 Lahore 321), Allah Ditta and others v. Province of Punjab (PLD 1997 Lahore 499), Divisional Engineer (Dev.) N-II T&T, Gujranwala and 3 others v. Rana Muhammad Sharif (2002 CLC 985) and Muhammad Hanif Khan v. Province of Sindh through Secretary, Land Utilization Department, Karachi and 8 others (PLD 2006 Karachi 531).

4. On the other hand, learned Law Officer contends that acquisition proceedings were completed in accordance with law and petitioner could have challenged the same within a period of six months but instant petition has been moved after a long delay, thus, the same is liable to be dismissed. However, he could not show from record that any of the notices required by the provisions of the Act of 1894 was issued to petitioner. He has relied upon Muhammad Saleem v. Land Acquisition Collector and others (1994 MLD 2425) and Rana Zahid Habib and 5 others v. Government of the Punjab and 3 others (2019 CLC 654).

5. Arguments heard. Available record perused.

6. Record shows that there is a gap of almost 4-years & 6-months between issuance of Notifications under Section 4 & 6, about 09-years between issuance of notification under Section 6 and announcement of award and more than 14-years between issuance of Notification under Section 4 and announcement of award. The aforesaid calendar of events, notifications and order demonstrate lethargic and inactive performance of statutory duties on the part of respondents. Law on the subject is very clear that unlimited time is not available to finalize the acquisition proceedings and respondents were required to complete the process of acquisition within a reasonable time as the land owners, whose lands were proposed to be acquired, could not be put in agony of uncertainty for such a long period spreading over years. During the period of more than 14-years elapsed between Notification under Section 4 and announcement of award, price of land had indeed escalated and is liable to be added into potential value of land previously determined by the Land Acquisition Collector. Reference can be made to Divisional Engineer (Dev.) N-II T&T, Gujranwala and 3 others v. Rana Muhammad Sharif (2002 CLC 985), Mian Tariq Maqsood and others v. Province of Punjab and another (2017 CLC 389) and Qasim Ali and 2 others v. Province of Punjab through

Secretary, Irrigation Department, Lahore and 4 others (2021 YLR 1261).

7. The available record also does not show that notice in terms of Section 9 was issued to petitioner showing government's intention to take possession of the land and inviting compensation claim. Enquiry into the objections, if any, pursuant to notice issued under Section 9, and into value of the land, in terms of Section 11 was also not conducted. Notice in terms of Section 12(2) was also not served upon petitioner. Section 12 lays down that the award shall be final and conclusive but it also requires the Collector, to give immediate notice of the making of the award to such of the persons interested or not present when the award is made. The intention was to give full opportunity to the interested persons to make out a case for adequate compensation. The Land Acquisition Collector was found to follow the provisions of the Act of 1894 in letter and spirit but the entire acquisition proceedings were kept secret till the time of demolition and possession. Service of notices was not affected upon petitioner in terms of modes provided in Section 45 of the Act. The service of notices as required under Sections 9 and 12 of the Act of 1894, according to the scheme of law, is mandatory requirement which cannot be dispensed with. If such notices were not given it would be a non-compliance with an obligatory part of the statute and the result would be that the award given by the Collector would be vitiated and action under section 11 shall have to be taken afresh so that a new award be made. Reference can be made to Col. Bashir Hussain and 10 others v. Land Acquisition Collector, Lahore Improvement Trust, Lahore and 2 others (PLD 1970 Lahore 321), Mst. Sardar Begum v. Lahore Improvement Trust, Lahore and 3 others (PLD 1972 Lahore 458), Amir Aftab Hussain v. Land Acquisition Collector, Punjab Provincial Highway Department, Rawalpindi and 4 others (PLD 2012 Lahore 440), Lt.-Col. Iqbal Janjua v. Military Estate Officer,

Lahore and 3 others (PLD 2013 Lahore 273) and Azad Government of the State of Jammu and Kashmir through Chief Secretary, Muzaffarabad and another v. Waheed Ahmed Khan and 10 others (2017 YLR 1895).

8. It is now a settled principle of law that no person could be condemned unheard, and no person could be divested of property without due course of law. Principles of natural justice are deemed to be imbedded and enshrined in every statute, unless expressly excluded. Where the recorded owner of the land, proposed to be acquired, is ascertained and is known, then notice to such person is necessary. The object of Land Acquisition Act is not to deprive a person from his property-right without due process of law. One of the essential intrinsic requirements of principle of natural justice is to give proper and meaningful opportunity to the affected person to challenge and object to the proposed or likely acquisition of land under the Act of 1894. Reference can be made to Muhammad Hanif Khan v. Province of Sindh through Secretary, Land Utilization Department, Karachi and 8 others (PLD 2006 Karachi 531).

9. So far as argument of learned Law Officer regarding delay in approaching this Court is concerned, suffice it to say that it has not been shown that requisite notices as per the mandate of the provisions of the Act of 1894 were issued to petitioner, even no notice was issued before starting demolition proceedings and taking over possession, thus, this argument is not sustainable. The case law, relied upon by learned Law Officer, being on distinguishable facts is not applicable to the facts and circumstances of this case.

10. Since the requisite notices as contemplated under the provisions of the Land Acquisition Act, 1894 were not issued to petitioner, therefore, instant petition is **allowed** to the extent that fixation of price of petitioner's acquired land is declared to be illegal and without lawful authority. The Land Acquisition

Collector is directed to re-fix the price of petitioner's acquired land and issue award to this extent accordingly within a period of **ninety days**, failing which the possession of land shall be returned to petitioner.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

Sultan